

24AVCV01656 24AVCV01656

County: los-angeles

Division: Civil Law and Motion

Department: A15

Hearing date: 2026-08-20

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Case Number: 24AVCV01656 Hearing Date: August 20, 2026 Dept: A15

JESSIKA DIXON et al. v. FORD MOTOR COMPANY et al.

Defendants' Motion for Summary Judgment/Summary Adjudication

BACKGROUND

Plaintiffs Jessika L. Dixon and Adam A. Dixon allege that on February 26, 2021, they purchased a Certified Pre-Owned 2018 Ford Explorer with approximately 34,639 miles and entered into a warranty contract with Ford Motor Company regarding the vehicle. The retail installment sale contract identifies Antelope Valley Ford as the seller and marks the vehicle as used. (Compl., ¶ 10; Moawad Decl., ¶ 2 & Ex. 1.)

The complaint asserts four Song-Beverly Consumer Warranty Act causes of action against Ford: failure to repair after a reasonable number of opportunities under Civil Code section 1793.2, subdivision (d); failure to complete repairs within 30 days under section 1793.2, subdivision (b); failure to provide sufficient service literature and replacement parts under section 1793.2, subdivision (a)(3); and breach of the implied warranty of merchantability. Plaintiffs also assert negligent repair against Diamond Ford and fraudulent inducement by concealment against Ford. (Compl., ¶¶ 27-63.)

Defendants filed this motion on February 6, 2026. They seek summary judgment or, alternatively, summary adjudication of eight issues. Their evidence consists of the declaration of attorney Jake N. Moawad and attached copies of the sale contract, the complaint, Ford's Standard Claims List for the vehicle, repair orders, Plaintiffs' document production, and excerpts of written discovery responses. No written opposition was filed.

The repair records identify three post-purchase warranty presentations. In June 2021, a Ford dealer replaced a leaking rear shock. In January 2022, Diamond Ford repaired the transmission after Plaintiffs reported slipping in low gears and reverse. In September and October 2024, Diamond Ford replaced the engine long block after finding coolant intrusion and a misfire. The records state that the facilities tested the vehicle after each repair. (Defendants' Separate Statement, UMF Nos. 3-15; Moawad Decl., Exs. 3-5.)

LEGAL STANDARD

A defendant moving for summary judgment or summary adjudication bears the initial burden to show that one or more elements of a cause of action cannot be established or that a complete defense applies. Only after that showing does the burden shift to the plaintiff to demonstrate a triable issue of material fact. (Code Civ. Proc., § 437c, subs. (f)(1), (p)(2); Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) Each issue presented for summary adjudication must completely

dispose of a cause of action, an affirmative defense, a claim for punitive damages, or an issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).)

A motion is not granted merely because it is unopposed. The Court must still determine whether the moving papers establish entitlement to judgment as a matter of law. (Code Civ. Proc., § 437c, subds. (c), (p)(2).) A defendant may satisfy its burden through comprehensive, factually devoid discovery responses from which it may be inferred that the plaintiff lacks and cannot reasonably obtain necessary evidence. The Court must apply that inference only after examining the discovery and the entire moving showing with care. (See *Andrews v. Foster Wheeler LLC* (2006) 138 Cal.App.4th 96, 101-107; also *Scheiding v. Dinwiddie Construction Co.* (1999) 69 Cal.App.4th 64, 83.)

DISCUSSION

A. Issue No. 1: Vehicle status and Ford's role

Defendants contend that the first four causes of action fail because Plaintiffs bought a used vehicle and Ford was not the retail seller. A transferred balance of an original manufacturer's warranty does not make a used vehicle a "new motor vehicle" under Civil Code section 1793.22, subdivision (e)(2). (See *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 199.) A manufacturer's new-car warranty issued with the later sale, however, may bring an otherwise used vehicle within that definition. (Id. at pp. 199-200.)

Undisputed Material Fact No. 1 establishes that the sale contract marked the Explorer as used and named Antelope Valley Ford as seller. Undisputed Material Fact No. 2 then asserts that, because the vehicle was used, it did not come with Ford's new-car warranty. That assertion does not follow from the cited evidence. The complaint alleges that Plaintiffs entered into a Ford warranty contract concerning a Certified Pre-Owned vehicle at the time of the 2021 sale. (Compl., ¶ 10.) The generic 2018 Warranty Guide attached to the complaint and the sale contract do not establish whether Ford did or did not issue a separate warranty with the later sale. Defendants submit no Ford warranty history, Certified Pre-Owned program record, or competent testimony addressing that question.

The Court does not decide whether Plaintiffs can ultimately prove the alleged warranty. The point is that Defendants have not negated the pleaded theory on which manufacturer liability could attach under *Rodriguez*. Because the initial burden is not met, summary adjudication of Issue No. 1 is denied.

B. Issue No. 2: Failure to repair after reasonable opportunities

Civil Code section 1793.2, subdivision (d)(2), requires replacement or restitution when a manufacturer is unable to conform a covered new motor vehicle to applicable express warranties after a reasonable number of repair attempts. More than one opportunity is required. (*Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1209.) What constitutes a reasonable number ordinarily depends on the circumstances. (See *Ibrahim v. Ford Motor Co.* (1989) 214 Cal.App.3d 878, 886.)

Here, the affirmative repair record identifies three facially distinct concerns: a rear shock, the transmission, and coolant intrusion into the engine. Each was presented once. The records state that the pertinent component or parts were replaced and that post-repair testing showed the concern corrected. The Ford claims history and Plaintiffs' discovery responses identify no later presentation of the same concern. (Defendants' Separate Statement, UMF Nos. 3-18; Moawad Decl., Exs. 3-7.) Defendants therefore carried their production burden on the inability to repair element.

No opposition evidence links these component failures to a single continuing nonconformity, shows that a reported concern recurred after repair, or otherwise creates a triable issue on Ford's ability to conform the vehicle. Summary adjudication of Issue No. 2 and the first cause of action is granted.

C. Issue No. 3: Damages from the 30-day repair period

Civil Code section 1793.2, subdivision (b), generally requires covered goods to be repaired to conform to the applicable warranties within 30 days unless the buyer agrees otherwise or delay results from conditions beyond the repairer's control. A buyer may sue under section 1794 only when damaged by the statutory violation. Damages for a subdivision (b) violation must therefore be caused by the repair delay; the replacement or restitution remedy does not arise from delay alone. (Civ. Code, § 1794, subds. (a), (b); *Ramos v. Mercedes-Benz USA, LLC* (2020) 55 Cal.App.5th 220, 228.)

The September 2024 repair order shows that the vehicle was opened for repair on September 11, 2024, at 9:46 a.m. and was ready on October 11, 2024, at 4:41 p.m. Defendants assume for this motion that the repair exceeded the statutory period by six hours and fifty-five minutes. (Defendants' Separate Statement, UMF Nos. 15, 19; Moawad Decl., Ex. 5.) The Court likewise assumes a violation for purposes of this issue.

Ford's targeted interrogatories requested all facts and documents supporting the subdivision (b) claim and all incidental and consequential damages. The responses identify generic loan, registration, insurance, repair, and maintenance amounts, but no expense or other harm caused by the assumed six hour and fifty-five minute overrun or by an unreasonable delay in beginning repairs. Plaintiffs' production likewise contains no rental, loss of use, or other item attributable to that period. (Moawad Decl., Exs. 6-9; Defendants' Separate Statement, UMF Nos. 18-19.) This targeted showing is sufficient to shift the burden. Plaintiffs submitted no opposition evidence. Summary adjudication of Issue No. 3 and the second cause of action is granted.

D. Issue No. 4: Service literature and replacement parts

Civil Code section 1793.2, subdivision (a)(3), requires a manufacturer making express warranties to make sufficient service literature and replacement parts available to its authorized repair facilities. A private action under section 1794 additionally requires damage caused by noncompliance. (Civ. Code, §§ 1793.2, subd. (a)(3), 1794, subd. (a).)

Special Interrogatory Nos. 9 and 10 requested all facts and documents supporting this claim. The responses repeat general defect and failed repair allegations and cite the repair orders, but identify no unavailable literature, unavailable part, or resulting harm. The repair orders affirmatively show that the facilities obtained the necessary transmission components, engine long block, gaskets, and hardware and completed the repairs. (Moawad Decl., Exs. 4, 5, 7; Defendants' Separate Statement, UMF Nos. 18, 20.) Together, the targeted discovery and completed repair records carry Defendants' initial burden. No opposition evidence creates a triable issue. Summary adjudication of Issue No. 4 and the third cause of action is granted.

E. Issue No. 5: Implied warranty of merchantability

For a used retail sale, Civil Code section 1795.5 generally places implied warranty obligations on the distributor or retail seller that gives an express warranty, rather than on the original manufacturer. But manufacturer liability may remain where the manufacturer issues a new warranty or plays a substantial role in the used sale. (*Rodriguez, supra*, 17 Cal.5th at p. 202.) The unresolved Certified Pre-Owned warranty issue discussed above therefore also prevents summary adjudication on Ford's status under section 1795.5.

Defendants' alternative showing on breach and damages is also insufficient. The first identified repair occurred more than three months after the sale, but an implied warranty may be breached by a latent defect that exists at sale and manifests after the warranty period. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1304.) Nor does the vehicle's continued accumulation of mileage establish merchantability as a matter of law. A vehicle must be fit for ordinary transportation in a safe and reliable condition, not merely capable of moving from place to place. (*Isip v. Mercedes-Benz USA, LLC* (2007) 155 Cal.App.4th 19, 27.)

Defendants offer no expert or valuation evidence negating a latent defect at sale, ordinary fitness, causation, or damages, and they identify no targeted factually devoid discovery response concerning the fourth cause of action. The absence of an appraisal in Plaintiffs' document production does not establish that Plaintiffs cannot reasonably obtain testimony or other proof of diminished value. Summary adjudication of Issue No. 5 is denied.

F. Issue No. 6: Duty to disclose

Fraudulent concealment based on exclusive knowledge, partial representation, or active concealment ordinarily presupposes a preexisting relationship created by direct dealings between the plaintiff and defendant. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40-41.) A manufacturer's relationship with consumers or the public at large, without more, does not create that duty. (*Bjoin v. J-M Manufacturing Co., Inc.* (2025) 113 Cal.App.5th 884, 901-902.)

Defendants establish that the retail sale contract was between Plaintiffs and Antelope Valley Ford. They do not, however, negate the complaint's separate allegation that a Ford Certified Pre-Owned warranty contract arose with the sale. In the arbitration context, our Supreme Court has treated a manufacturer's express warranty as a promise legally independent from the dealer's sale contract. (*Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1138.) Defendants submit no warranty terms or evidence fixing when and how the alleged warranty arose.

Nor does Undisputed Material Fact No. 28 establish an absence of pre-sale communications. The cited Requests for Admission Nos. 13 and 14 ask whether Adam Dixon personally asked Ford to repurchase or replace the vehicle; the responses do not address communications before purchase. The discovery excerpts elsewhere identify dealership conversations, promotional material, and the vehicle's window sticker. (*Moawad Decl.*, Exs. 7, 10.) The Court makes no finding that Ford owed a disclosure duty. It concludes only that the evidence cited in the separate statement does not negate the pleaded transactional theory or prove the asserted absence of pre-sale dealings. Summary adjudication of Issue No. 6 is denied.

G. Issue No. 7: Ford's pre-sale knowledge

Defendants separately contend that Plaintiffs cannot prove Ford knew of the alleged six-speed transmission defect before the sale. Their showing rests on Plaintiffs' failure to produce pre-sale internal Ford materials and on interrogatory responses that Defendants characterize as factually devoid. A plaintiff's present lack of evidence does not itself satisfy a defendant's burden; the showing must support an inference that the plaintiff does not possess and cannot reasonably obtain the necessary evidence. (*Aguilar, supra*, 25 Cal.4th at p. 854; *Scheiding, supra*, 69 Cal.App.4th at p. 83.)

The responses identify alleged sources of Ford's knowledge, including preproduction and postproduction testing, consumer complaints, warranty data, and repair data, and state that the internal materials are in Ford's exclusive possession. (*Moawad Decl.*, Ex. 7, responses to Special Interrogatory Nos. 34-43 and 51-54.) The responses are largely general, but they are not an admission that the evidence does not exist or cannot reasonably be obtained. Ford submits no employee, records custodian, or technical witness declaration addressing its knowledge or its search for the identified internal sources.

Ford's own claims list also records a vehicle-specific powertrain control module reprogramming on February 10, 2021, shortly before the sale. (*Moawad Decl.*, Ex. 3.) That entry does not establish knowledge of the defect alleged in the complaint, but it further demonstrates why the submitted record does not support the categorical inference that no pertinent evidence exists. Defendants have not carried their initial burden on Issue No. 7, and summary adjudication is denied.

H. Issue No. 8: Negligent repair

Diamond Ford contends that Plaintiffs cannot establish damages from negligent repair and that the economic loss rule bars the claim. The economic loss rule generally precludes recovery in tort for negligently inflicted financial harm unaccompanied by physical injury or property damage, particularly when the asserted duty merely restates a contractual obligation. (*Sheen v.*

Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 922; Rattagan, supra, 17 Cal.5th at p. 44.) Whether it applies requires examination of the parties' agreement, the asserted duty, and the nature of the claimed harm.

Undisputed Material Fact No. 29 states that Plaintiffs neither allege nor possess evidence of damage from negligent repair. The cited Form Interrogatory response, however, states that Plaintiffs attribute loss of or damage to the subject vehicle to the incident, and the damages response claims actual and incidental damages. (Moawad Decl., Ex. 9, responses to Form Interrogatory Nos. 7.1 and 9.1.) The answers to the negligent-repair interrogatories are conclusory, but they are not admissions that no damage occurred. The attached repair orders likewise do not establish the absence of repair caused damage, and Diamond submits no declaration from a technician or other competent witness negating breach, causation, or damage.

The moving papers also do not supply the terms of any repair or service agreement or otherwise establish that the alleged harm consists solely of disappointed contractual expectations rather than physical damage to property entrusted for repair. On this record, the Court cannot determine as a matter of law that the economic loss rule completely bars the fifth cause of action. Diamond has not carried its initial burden on Issue No. 8, and summary adjudication is denied.

CONCLUSION

The motion for summary judgment is denied. Summary adjudication is granted as to Issue Nos. 2, 3, and 4, disposing of the first, second, and third causes of action in favor of Ford Motor Company. Summary adjudication is denied as to Issue Nos. 1, 5, 6, 7, and 8. The fourth cause of action against Ford, the fifth cause of action against Diamond Ford, and the sixth cause of action against Ford remain for trial.

To submit without oral argument, all parties must follow the Department's "Submitting on a Tentative Ruling" instructions. Only one joint email may be sent. Do not telephone the courtroom. If the parties do not unanimously agree to submit, any party may appear at the scheduled hearing without advance notice.